

1 ENGROSSED SENATE
2 BILL NO. 378

By: Gollihare of the Senate

3 and

4 Pfeiffer of the House

5 An Act relating to bail bondsmen; amending 59 O.S.
6 2021, Section 1306.1, which relates to multicounty
7 agent bondsmen applications; allowing Insurance
8 Commissioner to approve certain bondsman to write
9 bonds over certain deposit amount; allowing
10 Commissioner to limit written bond amount;
11 prohibiting Commissioner from releasing certain
12 deposit for certain time period under certain
13 circumstances; allowing Commissioner to reduce
14 certain deposit bond amount written over certain
15 deposit amount; requiring Commissioner to provide
16 certain notice; updating statutory language; updating
17 statutory reference; and providing an effective date.

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22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. AMENDATORY 59 O.S. 2021, Section 1306.1, is
24 amended to read as follows:

25 Section 1306.1. A. 1. An applicant for a multicounty agent
26 bondsman license shall have been continually licensed as a
27 professional bondsman in ~~the State of Oklahoma~~ this state for a
28 minimum of two (2) years without suspension or having any unpaid
29 forfeitures prior to the date of application.

30 2. In addition to the requirements prescribed in Sections 1305
31 and 1306 of this title, an applicant for a multicounty agent
32 bondsman license shall submit to the Insurance Commissioner an

1 annual audited financial statement prepared by an accounting firm or
2 individual holding a permit to practice public accounting in this
3 state in accordance with the Statements on Auditing Standards
4 promulgated by the Auditing Standards Board of the American
5 Institute of Certified Public Accountants setting forth the total
6 assets of the bondsman less liabilities and debts. For initial
7 applications and for subsequent renewals of the license, the
8 statement shall show a net worth of at least Two Hundred Fifty
9 Thousand Dollars (\$250,000.00). The statement shall be current as
10 of a date not earlier than ninety (90) days prior to submission of
11 the application and the statement shall be attested to by an
12 unqualified opinion of the accountant.

13 3. Multicounty agent bondsman applicants shall make a deposit
14 with the ~~Insurance~~ Commissioner in the same manner as required of
15 domestic insurance companies. The deposit shall not be less than
16 One Hundred Thousand Dollars (\$100,000.00). Provided, however, any
17 and all deposits made pursuant to paragraph 3 of subsection A of
18 Section 1306 of this title shall count toward the fulfillment of any
19 deposit amount required by this section. The deposit shall be
20 subject to all laws, rules, and regulations as deposits by domestic
21 insurance companies but in no instance, except as provided ~~herein~~ in
22 this paragraph, shall a multicounty agent bondsman write bonds which
23 equal more than twelve (12) times the amount of the deposit which
24 the bondsman has submitted to the Commissioner; provided, however,

1 any currently licensed professional bondsman in good standing with
2 the Insurance Department and who, on ~~the effective date of this act~~
3 July 1, 2014, meets the provisions of the grandfather clause set
4 forth in Section 1306 of this title and who otherwise meets the
5 requirements of this section shall be afforded the same liability
6 ratio as that of such grandfathered professional bondsman. The
7 Commissioner may approve a multicounty agent bondsman to write bonds
8 over twelve (12) times the amount of the deposit but not more than
9 fifteen (15) times the amount of the deposit. Such deposit shall
10 require the review and approval of the ~~Insurance~~ Commissioner prior
11 to exceeding the maximum amount of Federal Deposit Insurance
12 Corporation basic deposit coverage for any one bank or financial
13 institution. In addition, a multicounty agent bondsman may make the
14 deposit by purchasing an annuity through a licensed domestic
15 insurance company in ~~the State of Oklahoma~~ this state. The annuity
16 shall be in the name of the bondsman as owner with legal assignment
17 to the ~~Insurance~~ Commissioner. The assignment form shall be
18 approved by the Commissioner. If a bondsman exceeds the above
19 limitation, the bondsman shall be notified by the Commissioner that
20 the excess shall be reduced or the deposit increased within ten (10)
21 days of notification, or the license of the bondsman shall be
22 suspended immediately after the ten-day period, pending a hearing on
23 the matter.

1 4. The deposit provided for in this section shall constitute a
2 reserve available to meet sums due on forfeiture of any bonds or
3 recognizance executed by the bondsman.

4 5. Any deposit made by a multicounty agent bondsman pursuant to
5 this section shall be released and returned by the Commissioner to
6 the multicounty agent bondsman only upon extinguishment of all
7 liability on outstanding bonds. Provided, however, the Commissioner
8 shall have the authority to review specific financial circumstances
9 and history of a multicounty agent bondsman, on a case-by-case
10 basis, and may release a portion of the deposit if warranted. If a
11 multicounty agent bondsman has increased his or her writing capacity
12 to over twelve (12) times the amount of the deposit, the
13 Commissioner shall not release a portion of the deposit for at least
14 two (2) years following the approval of the increased writing
15 capacity. If the multicounty agent bondsman has had any
16 administrative action in the previous two (2) years, the
17 Commissioner may deny such application. If the multicounty agent
18 bondsman has two administrative actions after the application is
19 approved, the liability ratio may be immediately reduced to twelve
20 (12) times the amount of the deposit. The Commissioner shall
21 provide electronic notice to the multicounty agent bondsman when the
22 ratio is automatically reduced. The Commissioner may promulgate
23 rules to effectuate the provisions of this paragraph.
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1 6. No release of deposits to a multicounty agent bondsman shall
2 be made by the Commissioner except upon written application and the
3 written order of the Commissioner. The Commissioner shall have no
4 liability for any such release to a multicounty agent bondsman
5 provided the release was made in good faith.

6 B. The deposit provided in this section shall be held in
7 safekeeping by the ~~Insurance~~ Commissioner and shall only be used if
8 a bondsman fails to pay an order and judgment of forfeiture after
9 being properly notified or shall be used if the license of a
10 multicounty agent bondsman has been revoked. The deposit shall be
11 held in the name of the ~~Insurance~~ Commissioner and the bondsman.
12 The bondsman shall execute an assignment or pledge of the deposit to
13 the ~~Insurance~~ Commissioner for the payment of unpaid bond
14 forfeitures.

15 C. Notwithstanding any other provision of Sections 1301 through
16 1341 of this title, the license of a multicounty agent bondsman is
17 transferable upon the death or legal or physical incapacitation of
18 the bondsman to the spouse of the bondsman or to such other
19 transferee as the multicounty agent bondsman may designate in
20 writing, and the transferee may elect to act as a multicounty agent
21 bondsman for a period of one hundred eighty (180) days if the
22 following conditions are met:

23 1. The transferee shall hold a valid license as a surety
24 bondsman in this state; and

1 2. The asset and deposit requirements set forth in this section
2 continue to be met.

3 At the end of the one-hundred-eighty-day period, the transferee
4 shall be allowed to apply for a license as a multicounty agent
5 bondsman, provided he or she has been continually licensed as a
6 surety bondsman for at least five (5) years immediately prior to the
7 date of application, notwithstanding the requirements of paragraph 1
8 of subsection A of this section.

9 D. A multicounty agent bondsman may appoint by power of
10 attorney a licensed surety bondsman as his or her agent to execute
11 bail bonds within any county in ~~the State of Oklahoma~~ this state.
12 The number of bail bonds a multicounty agent bondsman may insure in
13 counties other than the county he or she registers his or her
14 license, pursuant to subsection A of Section 1320 of this title,
15 shall not be limited by subsection B of Section 1320 of this title.

16 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the Senate the 26th day of March, 2026.

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4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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9 Presiding Officer of the House
10 of Representatives